



PUNJAB PUBLIC SERVICE COMMISSION

**COMBINED COMPETITIVE EXAMINATION
FOR RECRUITMENT TO THE POSTS OF
PROVINCIAL MANAGEMENT SERVICE -2020**

SUBJECT: LAW (PAPER-I)

TIME ALLOWED: THREE HOURS

MAXIMUM MARKS: 100

NOTE:

- All the parts (if any) of each Question must be attempted at one place instead of at different places.
- Write Q. No. in the Answer Book in accordance with Q. No. in the Q. Paper.
- No Page/Space be left blank between the answers. All the blank pages of Answer Book must be crossed.
- Extra attempt of any question or any part of the question will not be considered.

Attempt SEVEN Questions in All. TWO from Part-I, ONE Each from Part-II & III and THREE from Part-IV including Question No. 12 which is Compulsory.

PART 1

(The Code of Civil Procedure, 1908)

- Q. No. 1** What do you know about Appeal from Original Decree and Order from which Appeal lies as enshrined in Section 96 and Section 104 read with Order 43 of Code of Civil Procedure 1908 and mention two applicable decrees and two applicable orders to clarify your conception? **(15 Marks)**
- Q. No.2** Please distinguish between the remedies of Review and Revision as provided in the Code of Civil Procedure 1908 in a manner to show that you understand them. **(15 Marks)**
- Q. No.3** Please discuss implications of Notice as laid down in Section 80 of the Code of Civil Procedure 1908. Any mention of Case Law would be appreciated. **(15 Marks)**
- Q. No. 4** What do you know about the court which passed a decree as depicted in section 37 of the Code of Civil Procedure 1908 and describe any three modes of execution of various decrees as laid down in Order 21 of Code of Civil Procedure 1908? **(15 Marks)**

PART-II

(The Limitation Act, 1908)

- Q. No. 5** What is the effect of acknowledgement of debt on limitation? **(10 Marks)**
- Q. No. 6** When a suit is said to be instituted? **(10 Marks)**

PART III

(The Registration Act, 1908)

- Q. No. 7** Please describe any three documents which require compulsory registration under Section 17 of the Registration Act 1908 and three which fall in exceptions to the same section? **(10 Marks)**
- Q. No. 8** Section 50 of the Registration Act 1908 deals with certain registered documents related to land to take effect against unregistered documents with certain exceptions contained therein. Elaborate. **(15 Marks)**

PART-IV

(The Qanun-e-Shahadat Order, 1984)

- Q. No. 9** When opinion of a third person is relevant? How much credit is given to the opinion of a third person in evidence? **(15 Marks)**
- Q. No.10** Discuss the methods provided in the Qanun-e-Shahadat Order, 1984 for proving handwriting? **(15 Marks)**
- Q. No.11** What are the classes of documents? How they may be proved? **(15 Marks)**
- Q. No.12** Write short notes on the following: **(4 X 5 = 20 Marks)**
- | | |
|-----------------------|-------------------|
| a). Res Gestae | b). Relevancy |
| c). Refreshing memory | d). Admissibility |



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SUBJECT: LAW (PAPER-II)

TIME ALLOWED: THREE HOURS

MAXIMUM MARKS: 100

NOTE:

- i. All the parts (if any) of each Question must be attempted at one place instead of at different places.
- ii. Write Q. No. in the Answer Book in accordance with Q. No. in the Q. Paper.
- iii. No Page/Space be left blank between the answers. All the blank pages of Answer Book must be crossed.
- iv. Extra attempt of any question or any part of the question will not be considered.

Attempt FIVE Questions in All by selecting TWO Questions each from Part-I & II and ONE Question from Part-III.

PART-I

Q. No. 1 Accused was unable to pay the diyat as he was poor and also in Jail so whether accused can be released? Discuss provisions regarding payment of Diyat.

(20 Marks)

Q. No. 2 Define following terms: **(4x5=20 Marks)**

a) Mens-rea (b) Actus rea (c) conjoint punishment (d) ikrah-e-tam

Q. No. 3 Discuss the law regarding criminal breach of trust and its punishment also discuss law regarding criminal breach of trust by public servant, by banker, merchant or agent? **(20 Marks)**

Q. No. 4 Discuss cases in which Qisas for qatl-i-amd shall not be enforced and cases in which Qatil-i-Amd shall not be liable to qisas. **(20 Marks)**

PART-II

Q. NO. 5 For every distinct offence of which any person is accused there shall be a separate charge and every such charge shall be tried separately. Are there any exceptions to this rule? Discuss by quoting relevant law. **(20 Marks)**

Q. NO. 6 State the circumstances under which an accused may be granted post arrest bail. **(20 Marks)**

Q. NO. 7 Discuss the law relating to custody and disposal of the property in respect of which an offence appears to have been committed or which has been used for commission of any offence. **(20 Marks)**

Q. NO. 8 Explain different modes in which a Magistrate may take cognizance of an offence. Can a Court of Sessions take cognizance of any offence as a Court of original jurisdiction directly? Discuss. **(20 Marks)**

PART-III

Q. No. 9 Enumerate in order various processes prescribed for the recovery of arrears of the land revenue. Discuss the law relating to transfer of holding and attachment of holding as a process for the recovery of arrears of land revenue. **(20 Marks)**

Q. No. 10 What are the documents included in the Record of Rights? When it is prepared and what is the evidentiary value of entries in the Record of Rights? **(20 Marks)**